INTERGOVERNMENTAL COOPERATIVE PURCHASING

A G R E E M E N T

Pursuant to Chapter 39.34 of the Revised Code of Washington and to other applicable laws, the Vancouver School District and the Evergreen Public Schools, hereby agree to enter into cooperative agreements and to establish and maintain a joint purchasing agency for the purchase of various equipment and services under the following terms and conditions.

(1) This Agreement pertains to bids and contracts for supplies, material, equipment or services that may be required from time to time by both The Vancouver School District and the Evergreen Public Schools.

(2) Each of the parties from time to time goes out to public bid and contracts to purchase supplies, material, equipment, and services. Each of the parties hereby agrees to extend to the other party the right to purchase pursuant to such bids and contracts to the extent permitted by law, and to the extent agreed upon between each party and the bidder, contractor, vendor, supplier, or service provider.

(3) Each of the parties shall comply with all applicable laws and regulations governing its own purchases.

(4) Each of the parties shall contract directly with the bidder, contractor, vendor, supplier, or service provider, and pay directly in accordance with its own payment procedures for its own purchases. Each party will indemnify and hold the other party harmless as to any claim arising out of its participation in this Agreement.

(5) Any purchase made pursuant to this Agreement is not a purchase from either of the parties. This Agreement shall create no obligation to either of the parties to purchase any particular good or service, nor create to either of the parties any assurance, warranty, or other obligation from the other party with respect to purchasing or supplying any good or service.

(6) No separate legal or administrative entity is intended to be created pursuant to this Agreement. No obligation, except as stated herein, shall be created between the parties or between the parties and any applicable bidder or contractor.

(7) The Purchasing Manager of the Vancouver School District and the Purchasing Manager for the Evergreen Public Schools shall be representatives of the entities for carrying out the terms of this Agreement.

(8) This Agreement shall continue in force until June 30, 2028 or canceled by either party, which cancellation may be effected upon receipt by one of the parties of the written notice of cancellation of the other party.

APPROVED:

Vancouver School District No. 37
PO Box 8937
Vancouver, WA 98668-8937

_____
President
Board of Directors

_____
Secretary
Board of Directors

_____
Date

APPROVED:

Evergreen Public Schools
PO Box 8910
Vancouver, WA 98668-8910

_____
President
Board of Directors

_____
Secretary
Board of Directors

5-9-2023
_____
Date

RESOLUTION# 6786

INTERGOVERNMENTAL COOPERATIVE PURCHASING AGREEMENT WITH VANCOUVER SCHOOL DISTRICT

WHEREAS, RCW 39.34 provides that common school districts and other public agencies may enter into agreements for cooperative action; and

WHEREAS, it would be financially advantageous for Evergreen School District No. 114 to enter into an agreement for the purchase of products and services; and

WHEREAS, appropriate action by ordinance, resolution or otherwise pursuant to the law of the governing bodies of the participating agencies shall be necessary before any such agreement may enter into force,

Now, therefore, **BE IT RESOLVED** that Evergreen School District No. 114 is hereby authorized to enter into a Cooperative Purchasing Agreement with the above-named public agency.

DATED this 9th day of May, 2023.

Board of Directors
Evergreen School District No. 114

Victoria Bradford

Attest:

Secretary, Board of Directors
May 9, 2023